

KABC010153422023



IN THE COURT OF XV ADDITIONAL CITY CIVIL & SESSIONS :
JUDGE AT BENGALURU (CCH.NO.3)

Dated this 30th day of May 2024

EX. PETITION No. 1489/2023

Present :- **Sri. Laxman Ramu Kurane, B.Com., L.L.M**
XV Additional City Civil & Sessions
Judge, Bengaluru.

Decree **Holder/S** :- **Mr. Rajiv.P.**
S/o Late K. Parasmal
Aged about 55 years
V/s R/o No. 917
Ideal Home Township Main Road
Rajarajeshwarinagar
Bengaluru-560 098.

Judgment **Debtor/s** :- **1. Smt. Charulatha Jain**
W/o Late Sri. P. Sanjiv
Aged about 54 years

2. Sri Pratik
S/o Late Sri. P. Sanjiv
Aged about 26 years.

3. Sri. Piyush
S/o Late Sri. P. Sanjiv
Aged about 24 years.

All are r/a No. 917, First Floor
Ideal Home Township Main Road
Rajarajeshwarinagar
Bangalore-560 098.

ORDER ON MAIN PETITION

Heard Advocate for DHR and Advocate JDR on the main petition. The following points that arise for my consideration:-

1. Whether Decree holder is entitled to issue delivery warrant against JDRs in respect of petition properties i.e. item No.1 and 2 ?
2. What order ?

2. My findings on the above point is as under :-

Point No.1 :- In the Negative

Point No.2 :- See for the following :

R E A S O N S

3. **Point No.1** :- The Decree Holder has filed this Execution Petition to execute compromise decree dated 12.11.2022 passed against Judgment Debtor in O.S.1037/2017. The JDR 1 to 3 appeared through their Advocate and filed objection to main petition stating that the petition is highly mis-conceived which is neither maintainable in law nor on facts. This petition has been filed in pursuance of the compromise decree passed in OS 1037/2017 by allotting the demarcating the plaintiff's share and the joint share of the defendants in the suit schedule properties subject to implement of obligations as putforth in the compromise entered between DHR and JDRs. The JDR submitted that the DHR has filed this Execution petition without fulfilling the obligations on his part as entered in the compromise. Both DHR and JDRs have filed compromise petition in the original proceedings to get partition of item No.1 and 2 on 12.11.2022, the DHR and JDRs filed compromise petition before the National Lok Adalath, accordingly the OS 1037/2017 was

compromised between the parties.

4. It is further stated that as per item No.2 of suit schedule property which is a registered property, both the DHR and JDRs are initially required to enter into a re-constitution of their family partnership firm by name M/s. Rakabchand Parasmal and Brothers and its business entity M/s State Traders. Further as per compromise decree both the DHR and JDRs should dissolve the partnership firm by entering into deed of dissolution of partnership firm, to bring the Item No.2 of suit schedule property into the joint family assets to enable them to obtain physical apportionment of their share as per the sketch of both item No.1 and 2. Further the final decree drawn towards the share of defendant No.1 to 3 registered before the concerned Sub Registrar office. The JDR submitted regarding item No.1 is residential building, both DHR and JDRs should appoint a Civil Engineer or Contractor for carrying out the necessary repair work including the construction of walls and a re postponing the doors of physical demarcate their respective shares in the item No.1.

5. There is no dispute regarding compromise decree dated 12.11.2022 passed in OS 1037/2017. The said suit was decreed in terms of compromise entered between DHR and JDRs. Both DHR and JDRs should comply and act according to the terms entered between them in compromise petition to get execution of decree passed in OS 1037/2017. The DHR produced draft copy of re-constitution deed, draft copy of dissolution of partnership firm and draft copy of dissolution deed of Judgment debtor. The DHR also produced copy of e-mail dated 6.1.2023 sent to Advocate for JDR informing draft deed of re-constitution firm to be entered between the DHR and JDRs, further the DHR produced e-mail dated 10.1.2023 to

Advocate for JDR stating that currently filed the attachment and also sent as the draft of dissolution of partnership deed and sent draft copy of re-constitution deed dated 10.11.2023. Further, the DHR also produced e-mail dated 17.11.2023 reminding to the Advocate for JDRs stating that two months passed to comply with the order, requested to send draft of re-constitution of partnership deed. On 18.1.2023 the JDR's counsel sent e-mail to DHR counsel stating that he has sent draft partnership deed on 6.1.2023 with some modifications which has taken place between the JDRs and DHR and requested the DHR to proceed with the registration of deed after carrying out the above mentioned correction in coordination with JDRs. The DHR counsel replied on 18.1.2023 through e-mail at about 7.53 p.m. noted with thanks. On 10.03.2023 the DHR counsel sent e-mail to JDRs counsel along with draft dissolution partnership deed, revert as soon as possible. On 8.5.2023 the DHR counsel issued e-mail to JDR counsel stating that we have sent the draft of dissolution of partnership deed for your reference and receiving the same till now you have not reverted. As per the terms and conditions of compromise decree, it has to be complied before 12.05.2023. The Advocate for JDR sent mail on 11.5.2023 to Advocate for DHR stating that file contain the draft deed for your perusal, you are called upon to forthwith firstly arrange execution and registration of partnership between DHR and JDR and after a number of hiatus and before minimum preparation letter opening Bank account or the partnership for the limited purpose of remittance of statutory fees, capital gain tax and stamp duty etc, as would be advised by the Chartered Accountant agreeable mutually and then we could proceed to finally to execute and register the dissolution deed between the parties. The DHR counsel in turn sent e-mail dated 11.5.2023 and stated thanks for your mail. The Advocate for DHR sent e-mail to DHR and forwarded mail received by him from the JDR to the DHR.

6. The DHR counsel sent e-mail dated 17.05.2023 to DHR stating that the draft of dissolution of partnership deed except clause-7 to 9 rest are OK for us. Please find attached the draft. The said clause does not apply nor comes as these partners have not carried out any business under the re-constituted partnership firm. Further the capital gain tax will not apply in this case as the said properties are acquired by the parties under the Family partition. As per the compromise decree parties have to agree to hand over the properties of their respective share within six months from the date of compromise.

7. The party to the proceedings by the terms of compromise decree both DHR and JDR made allegations with each other regarding compliance of terms of compromise decree. Non-compliance of terms of compromise decree no question of issuing delivery warrant against JDRs. The JDRs submitted that the DHR has not come forward to re-constitute the partnership by name M/s Rekhabchand Parasmal and Brothers and its business entity M/s. State Traders is to be further dissolved among the DHR and JDRs. Further both DHR and JDR shall dissolve the partnership firm to get the final decree in respect of item No.2. Both the DHR and JDRs have to comply the compromise term No.7 in the compromise decree to get the fruits of compromise decree in respect of item No.1 and 2 petition properties. Item No.1 is residential house that should be divided by appointing a Court Commissioner. Without all these or without complying the terms of compromise decree both DHR and JDRS shall not get fruits of decree passed in the suit OS 1037/2017. In view of above said reason, I hold point No.1 in the Negative and proceed to pass the following :

8. **Point No.2** :- In view of the above discussion on point No.1, I proceed to pass the following :-

ORDER

Execution Petition filed by

Decree Holder is dismissed.

(Dictated to the Stenographer, transcribed and typed by him, corrected and then pronounced by me in the open court on this the 30th day of May 2024).

(Laxman Ramu Kurane)
XV Addl.City Civil & Sessions
Judge, Bengaluru.

O R D E R IS PRONOUNCED IN OPEN
COURT VIDE SEPARATELY

Execution Petition filed by

Decree Holder is dismissed.

**XV Addl.City Civil & Sessions
Judge, Bengaluru.**